CalWORKs Program Guide: H. Employment Services Grievances

COUNTY OF SAN DIEGO HEALTH & HUMAN SERVICES AGENCY - CALWORKS PROGRAM GUIDE

Effective Revision Date: 2026-01-01

Section 1

COUNTY OF SAN DIEGO HEALTH AND HUMAN SERVICES AGENCY
CALWORKS PROGRAM GUIDE ? SECTION 10-030: PARTICIPANT RIGHTS
TITLE: H. EMPLOYMENT SERVICES GRIEVANCE PROCEDURES

Section 2

1. POLICY BACKGROUND & PURPOSE
CalWORKs Welfare-to-Work (WTW) participants have the legal right to file a formal grievance regarding any dispute concerning assigned work activities, supportive service payments, assessments, or caseworker actions under CDSS MPP EAS 42-721.5. This section outlines the internal County dispute resolution and independent hearing processes.

Section 3

2. DETAILED REGULATORY STANDARDS & GRIEVANCE RESOLUTION
? Scope of Grievance: A participant may file a grievance regarding:
(1) Disagreement with the results of a vocational assessment;
(2) Assignment to an inappropriate or unsafe work activity;
(3) Refusal or underpayment of child care, transportation, or ancillary supportive services;
(4) Inappropriate conciliation or noncompliance determinations.
? I nformal Conference: Upon receipt of a grievance, a supervisor must schedule an informal conference with the participant within 10 business days to review the dispute and attempt mutual resolution.
? Formal Grievance Hearing: If the dispute is not resolved informally, the participant is entitled to a formal hearing before an independent County Hearing Officer. The hearing officer issues a binding written decision within 30 days.
? State Fair Hearing Right: Participants maintain the right to appeal any County decision directly to the California Department of Social Services (CDSS) for a formal State Fair Hearing, regardless of whether internal grievance procedures were utilized.

Section 4

3. CASEWORKER OPERATING PROCEDURES & VERIFICATION CHECKLIST

? Grievance Intake: Accept written or verbal grievances and forward them to the Appeals and Review unit within 24 hours.

? Aid Paid Pending: If the grievance involves a reduction in supportive services or cash aid and was filed prior to the effective date of notice, aid must be maintained at the current level pending the hearing outcome.

? File Maintenance: Preserve all grievance correspondence and written hearing decisions in the official case record.